

22LBCV00584 22LBCV00584

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 22LBCV00584 Hearing Date: September 3, 2026 Dept: S27

1.

Motion

for Attorneys' Fees

a. Procedural History

Plaintiff accepted Defendant's \$998 offer on 12/28/23. Plaintiff filed a Notice of Settlement of Entire Case on 12/29/23; the notice indicates the settlement is conditional, with all payments to be made by 3/28/24.

On 4/16/24, the Court held an OSC re: Dismissal (Settlement). Plaintiff appeared at the hearing; Defendant did not. The Court noted that no dismissal had been filed. The Court ordered the case dismissed without prejudice and retained jurisdiction to enforce any and all terms of the settlement per CCP §664.6.

b. Timeliness of Motion for Attorneys' Fees

Plaintiff filed this motion for attorneys' fees on 2/17/26. The parties discuss the cases of *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 and *Madrigal v. Hyundai Motor America* (2025) 17 Cal.5th 592 in connection with the issue.

In *Hatlevig*, the parties notified the trial court that they had settled the case. The trial court took all pending matters off calendar and ordered the parties to file a dismissal within 45 days. A little more than a month thereafter, the trial court generated a Notice of Dismissal by Court that

stated the case would be dismissed without prejudice, effective approximately a month thereafter, unless either party appeared and showed good cause not to dismiss the case. No party appeared or did so. The plaintiff moved for attorneys' fees, but did not serve the motion until more than 180 days after the date the trial court indicated the matter would be dismissed if no party contested the dismissal. Notably, the trial court did not actually issue a minute order dismissing the case until AFTER the attorneys' fees motion was filed and served, but the trial court found this was of no help to the plaintiff, and the court of appeals agreed. The court of appeals noted that the mere filing of the motion implicitly concedes the case has been dismissed, as a motion for fees does not lie until after entry of judgment.

Plaintiff argues Hatlevig is not on point, because the dismissal in this case expressly retains jurisdiction to enforce the parties' settlement per §664.6. He also argues Madrigal establishes that, under the circumstances, his motion is timely. The Court has read Madrigal, and finds the issue in the case was whether §998's cost-shifting analysis applied or not; timeliness was neither argued nor discussed.

This case is on all fours with Hatlevig. The fact that the trial court retained jurisdiction to enforce the settlement pursuant to §664.6 does not assist Plaintiff in his argument; indeed, retention of jurisdiction under §664.6 can only happen if there is a dismissal, as there is otherwise no need to retain jurisdiction, which would be ongoing. The Court therefore finds the motion is not timely.

Plaintiff argues, in the alternative, that the Court should find good cause under CRC 3.1702(d) to permit the untimely motion. 3.1702(d) permits the trial court, in its discretion, to extend the time for filing a motion for fees in the absence of a stipulation or for a longer period than allowed by stipulation. The Court does not find good cause. The Court notes that the parties' settlement contemplated all payments being made by March of 2024, but this motion was not filed until February of 2025, almost a year later. Plaintiff has neither argued nor shown that payments were not made as contemplated in the parties' agreement. Even if the Court were to consider the last payment under the settlement to be the triggering event, this motion was filed more than 180 days thereafter. Notably, the trial court expressly set the OSC re: dismissal for a date AFTER the last payment was to be made, and it appears the settlement was final by the time the

Court dismissed the case.

Notably, Plaintiff argues his moving papers were filed on or about the same day Hatlevig was decided, and appears to contend this constitutes “good cause” to extend the time for filing the moving papers. The Hatlevig Court, however, did not extend the time for that motion to be filed in light of the “new law” it developed, and did not make any indication that it intended its analysis to apply only on a prospective basis. On the alternative, the Hatlevig Court was merely construing the law as it already existed, and clearly intended the holding to apply to all cases, whether already pending or in the future.

The motion is denied due to failure to file and serve the moving papers within 180 days after dismissal of the action.

Plaintiff is ordered to give notice.